

24PSCV02242 24PSCV02242

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Tentative Ruling

PLAINTIFF'S

MOTION FOR ATTORNEYS' FEES is GRANTED; the court requests Plaintiff file a proposed order.

Background

This is a lemon law case arising from Plaintiff Juana Pantoja's October 2020 purchase of a 2020 Chevrolet Silverado.

On July 15, 2024, Plaintiff filed suit against Defendant General Motors LLC.

On August 19, 2024, GM filed its answer.

On January 16, 2026, a notice of settlement was filed.

On March 11, 2026, the instant motion was filed.

On June 17, 2026, an opposition was filed.

On June 18, 2026, a reply was filed.

Discussion

Plaintiff seeks an order awarding her attorneys' fees in the total amount of \$11,451.50.[1] The

hourly rates for the attorneys who worked on this case are: (1) Joshua D. Fennell (\$525.00/hr) and (2) Wil Vollbrecht (\$440.00/hr);[2] Plaintiff's fee recovery is based on the twenty-one (21) hours spent by her attorneys litigating this case through this fee motion.

In opposition, Defendant maintains Counsel should be awarded no more than \$5,903.50 in fees (12.5 hours of work).

For reasons to be discussed, the court awards the requested fee in full.

The gist of the opposition as to each entry disputed is that Plaintiff's counsel spent more than they should have/should have spent less time because this is a routine lemon law case that uses templates such that the entries are excessive. (See e.g., Opp. p. 7:3-8["Counsel repeatedly requests that the courts award Counsel with fees for preparing the same templates over and over again. Specifically, between April 2025 and April 2026, Counsel has filed at least 134 fee motions against GM. From across this time period, Counsel's templates have remained fundamentally the same and the compensation they have received has been unfair, as GM should not have to continue to pay for the same "work" time and time again."].)[3] (A variation of the word 'template' was used 23 times in the opposition.) But as noted in reply, once submitted, billing records "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) Defendant has not shown that the records are erroneous. Plus, while a trial court may deny compensation for "inefficient or duplicative" work (ibid), here, using templates or prior work product as a starting point is efficient. If Plaintiff was to not use templates, then that would lead to far increased fees, which would undercut Defendant's position for a reduction in fees.

All in all, when an opposing party objects to the hours expended, "[g]eneral arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (See Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848; see also City of Santa Paula v. Narula (2003) 114 Cal.App.4th 485, 494 ["The Narulas contend that the City's lawyers sought fees for unnecessary

services and sought excessive compensation for simple tasks...[b]ut...the Narulas filed no declarations in opposition to the fees and presented no proof that there was a duplication of services.”.) Absent evidence/proof that the fees were excessive, the court will grant them in their entirety.

Conclusion

Based on the foregoing, the motion is granted.

[1] Though the motion sought \$12,351.50.

[2] As the hourly rates are not disputed, they will not be addressed by the court.

[3]

See also Opp. pp. 7 [objecting to ‘templated discovery responses’ [“Given the standardized nature of the requests—and the availability of templated objections and responses commonly used by Counsel in Song-Beverly litigation—it is unreasonable that Counsel required more than 30 minutes complete this task”]; Templated Memorandum of Costs [time should be capped at 30 minutes]; templated fee motion [“Counsel’s fee motion in this case is substantially like motions and replies that

Counsel filed in other Song-Beverly cases against GM”]; see also redundant email correspondence [22 billing entries for communications is excessive]; mediation brief [“brief is a template Counsel uses in essentially every case against GM”].)